
Case	Title / Nature of Case
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09:00 AM

23-CIV-00924 GENENTECH, INC. VS. MILLENNIUM PHARMACEUTICALS, INC.

LINE 1

GENENTECH, INC.

JEFFREY E. FAUCETTE

MILLENNIUM PHARMACEUTICALS, INC.

BRIAN CANNON

DEFENDANT MILLENNIUM PHARMACEUTICAL INC.'S MOTION TO SEAL

TENTATIVE RULING:

The Motion to Seal by Defendant Millennium Pharmaceuticals, Inc. (“Millennium”), is GRANTED IN PART. However, PARTIES ARE TO APPEAR at the hearing (Zoom is ok) to discuss scheduling as addressed in detail below.

As a procedural matter, the Notice of Motion contains an incorrect address for Department 20. Department 20 is located at 1050 Mission Road, Courtroom L, in South San Francisco, CA 94080.

Millennium brings this Motion to file documents under seal in connection with its summary judgment motion. “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, Rule 2.550(c).) A court order is required to file documents under seal. (Cal. Rules of Court, rule 2.551(a).) A record may not be filed under seal based solely on the agreement or stipulation of the parties. (*Ibid.*) The court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court Rule 2.550(d).)

The court finds that Millennium has established these factors to support filing under seal Sections 3.01, 3.02 and 3.03 of Exhibits B and C to the Huddle Declaration, as well as Exhibits E, I, M and W to the Huddle Declaration. Therefore, the Motion to these exhibits is GRANTED.

Millennium “also seeks to redact portions of its Motion for Summary Judgment that reference the non-public terms and information in the aforementioned exhibits.” (Millennium’s Notice of Motion filed May 1, 2026, p. 2:15-16.) Millennium fails to specifically identify these redacted portions in its Motion. This failure is problematic because Millennium also filed a Notice of Lodging Documents Conditionally Under

Seal at the same time it filed this Motion. (Millennium's Notice of Lodging Documents filed May 1, 2026.) Millennium's Notice of Lodging pertains to the following documents:

- Notice of Motion and Motion for Summary Judgment
- Declaration of Roger Huddle
- Separate Statement of Undisputed Material Facts
- Exhibit A to the Declaration of Roger Huddle (Research and License Agreement between City of Hope Research Institute and Genentech, Inc., effective August 1, 1981)
- Exhibit D to the Declaration of Roger Huddle (Non-Exclusive License Agreement ("Cabilly Co-expression Patents") between Genentech, Inc. and CSL Limited, effective June 13, 2006)
- Exhibit F to the Declaration of Roger Huddle (Expert Report of E. Fintan Walton in *MedImmune, Inc. v. Genentech, Inc. and City of Hope*, No. CV03-2567 (C.D. Cal.), dated February 29, 2008)
- Exhibit J to the Declaration of Roger Huddle (Non-Exclusive License Agreement ("Cabilly Coexpression Patents") between Genentech, Inc. and Samsung Bioepis Co. Ltd., effective July 20, 2016)
- Exhibit K to the Declaration of Roger Huddle (Non-Exclusive License Agreement ("Cabilly Coexpression Patents") between Genentech, Inc. and Kyowa Hakko Kirin Co., Ltd., effective September 1, 2017)
- Exhibit L to the Declaration of Roger Huddle (Non-Exclusive License Agreement ("Cabilly Coexpression Patents") between Genentech, Inc. and Kyowa Hakko Kirin Co., Ltd., effective December 1, 2017)
- Exhibit Q to the Declaration of Roger Huddle (excerpt of the Felix Wong October 17, 2025 deposition transcript)
- Exhibit R to the Declaration of Roger Huddle (excerpt of the Timothy Schwartz November 7, 2025 deposition transcript)

(*Ibid.*) Thus, Millennium's Notice of Lodging also includes its Notice of Motion and Motion for Summary Judgment and its Separate Statement of Undisputed Material Facts without referencing the specific portions that are the subject of the Notice of Lodging. Millennium therefore fails to identify which portions of its summary judgment papers are redacted pursuant to its Motion to Seal and which portions are redacted pursuant to the Notice of Lodging.

The court finds that only page 12 of Millennium's Memorandum clearly references the exhibits that are the subject of Millennium's Motion to Seal, and it GRANTS the Motion to file under seal page 12 of the Memorandum. The Motion is DENIED to the remainder of Millennium's redacted Memorandum as well as Millennium's redacted Separate Statement.

Further, the Notice of Lodging is made pursuant to California Rules of Court, rule 2.551(b)(3). This procedure places the burden on the party that produced the documents subject to a confidentiality agreement or protective order to bring a motion to seal where the party that lodged the unredacted records does not intend to request to have the records sealed. (See Cal. Rules of Court, rule 2.551(b)(3).) If the party that was served with the notice of lodging fails to file a motion or an application to seal the records within 10 days or to obtain a court order extending the time to file such a motion or an application, the clerk must promptly transfer the documents to the public file. (*Id.*, at rule 2.551(b)(3)(B).) "If the party

files a motion or an application to seal within 10 days or such later time as the court has ordered, these documents are to remain conditionally under seal until the court rules on the motion or application and thereafter are to be filed as ordered by the court.” (*Ibid.*)

Genentech filed a pending motion to seal, but it does not address filing under seal the exhibits and moving papers in support of Millennium’s summary judgment motion. (See Genentech’s Notice of Motion to Seal filed June 12, 2026 [hearing on November 6, 2026].) Millennium served the Notice of Lodging on Genentech on May 1, 2026. (Proof of Service filed May 1, 2026.) Thus, the time for Genentech to bring a motion to file these documents under seal has expired, and the court finds these documents that are the subject of the Notice of Lodging may be placed in the court’s public records.

Since it is unclear whether Millennium may be asserting that some portions of the Memorandum and/or Separate Statement are subject to the procedure set forth in rule 2.551(b)(6), PARTIES ARE TO APPEAR to address how to proceed. “If the court denies the motion or application to seal, the moving party may notify the court that the lodged record is to be filed unsealed. This notification must be received within 10 days of the order denying the motion or application to seal, unless otherwise ordered by the court. On receipt of this notification, the clerk must unseal and file the record. If the moving party does not notify the court within 10 days of the order, the clerk must (1) return the lodged record to the moving party if it is in paper form or (2) permanently delete the lodged record if it is in electronic form.” (Cal. Rules of Court, rule, 2.551(b)(6).)

To the extent that the court is ordering the redacted portions of Millennium’s Memorandum (except as to page 12) and Separate Statement of Facts be placed in the court’s public records, Millennium is to re-file and serve these documents with the unredacted portions within ten days of the order instead of having the court clerk place them in the court’s records to ensure that they comply with this order.

Additionally, as noted Genentech has one pending motion to seal, filed June 12, 2026. Millennium has three additional pending motions to seal filed on May 11, 2026, June 12, 2026, and June 22, 2026. All four of these pending motions to seal, deal in some fashion with documents filed in support of or in opposition to the pending Motion for Summary Judgment (“MSJ”) and/or Motion for Summary Adjudication (“MSA”) both of which are calendared for July 17, 2026. These four motions to seal must be adjudicated before the MSJ/MSA so that there is a clear record of what documents may, or may not, be utilized for the MSJ/MSA. See, CRC Rule 2.551(b)(6). Parties are advised that it will not be possible for the Court to hear all four motions to seal before July 17, 2026. Therefore, parties are to meet and confer on scheduling, as it is highly probable there will be a continuance and resetting of all four motions to seal, the MSJ/MSA, Pretrial and Trial dates.

As parties are required to appear, a contest of this tentative is not required and the tentative ruling shall become the order of the Court by Minute Order. Millennium’s counsel to prepare the Order after hearing.

09:00 AM

23-CIV-04084

SYLVIA ALVAREZ-LYNCH VS. MARK LAWRENCE CELLA, ET AL.